1.

CASE #	CASE NAME	HEARING NAME
CVRI2306971	GILLIAM VS HOMEOWNERS FIRST LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Defendant Homeowners First's Motion for Attorney's Fees is denied.

REQUEST FOR JUDICIAL NOTICE

Homeowners First asks the Court to take judicial notice of the deed of trust, recorded 1/4/07 and the assignments of the deed of trust, recorded 11/19/10 and 9/5/17. Judicial notice of recorded documents may be granted on "the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity." (*Poseidon Development, Inc. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1118 [judicial notice properly taken of the legal effect of assignment of deed of trust].) Accordingly, the request for judicial notice is granted.

C.C.P. § 916

Plaintiffs argue that because Gilliam appealed the order granting judgment on the pleadings against her, the Court should defer the hearing on the present motion for attorney's fees until after the appeal is decided pursuant to C.C.P. § 916.

C.C.P. § 916(a) states that "the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." However, the trial court "retains jurisdiction to entertain a motion for attorney fees despite an appeal[.]" (*Nazemi v. Tseng* (1992) 5 Cal.App.4th 1633.) "'[T]he filing of a notice of appeal does not deprive the trial court of jurisdiction to award attorney fees and costs post trial…[A]n award of attorney fees as costs is a collateral matter which is embraced in the action but is not affected by the order from which an appeal is taken. [Citations.] Consequently, filing a notice of appeal does not stay any proceedings to determine the matter of costs and does not prevent the trial court from determining a proper award of attorney fees claimed as costs.' [Citation.]" (*Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1052.) Therefore, the Court retains jurisdiction to hear and rule on Homeowners First's motion for attorney's fees despite Plaintiffs' appeal.

TIMELINESS

Plaintiffs next argue that the motion is untimely because Homeowners First filed a notice of entry of the order granting its motion for judgment on the pleadings on September 8, 2025, and did not file the present motion until almost 8 months later.

Pursuant to CRC 3.1702, a party must file a motion for attorney's fees within the time for filing an appeal pursuant to CRC 8.104. CRC 8.104 provides that an appeal must be filed within 60 days of notice of entry of judgment or 180 days of the entry of judgment, whichever comes first. While Homeowners First did file a notice of the entry of the August 28, 2025, order in September 2025, it did not file a notice of entry of judgment at that time, and a notice of entry of an order is not the same thing as a notice of entry of judgment. Additionally, as pointed out by the appellate court in its January 30, 2026, order directing Gilliam to file a copy of the final judgment from which she is appealing, an order granting judgment on the pleadings is not an appealable order. (See, 1/30/26 Order from the 4th District Appellate Court.) Judgment was entered in this case on February 13, 2026. (See, 2/13/26 Judgment.) According to the Court's docket, no Notice of Entry of that Judgment has been filed. Therefore, the 180-day period set forth in CRC 8.104 started on February 13, 2026. As this motion was filed on May 22, 2026, well within 180 days, it is timely.

ATTORNEY'S FEES

Attorney fees are recoverable as costs pursuant to contract, statute, or law. (C.C.P. § 1033.5(a).) Civ. Code § 1717 controls the award of attorney fees where the action or cause of action is "on a contract." Specifically, Civ. Code § 1717 provides, in pertinent part, as follows:

> In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

(Civ. Code §1717(a).)

"California courts liberally construe the term 'on a contract' as used within section 1717. … As long as the action 'involve[s] a contract it is 'on [the] contract' within the meaning of [s]ection 1717. …" (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 894 [internal citations and quotations are omitted].) "In determining whether an action is 'on the contract' under section 1717, the proper focus is not on the nature of the remedy, but on the basis of the cause of action." (*Kachlon v. Markowitz* (2008) 168 Cal.App.4th 316, 347; *see generally Luckey v. Sup. Ct.* (1930) 209 Cal. 360, 366 ["The subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief."].) "An action (or cause of action) is 'on a contract' for purposes of section 1717 if (1) the action (or cause of action) 'involves' an agreement, in the sense that the action (or cause of action) arises out of, is based upon, or relates to an agreement by seeking to define or interpret its terms or to determine or enforce a party's rights or duties under the agreement; and (2) the agreement contains an attorney fees clause." (*Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.* (2012) 211 Cal.App.4th 230, 242.)

Civ. Code § 1717 generally does not apply to tort claims; it determines which party, if any, is entitled to an award of fees on a contract claim only. (*Gil v. Mansano* (2004) 121 Cal.App.4th 739, 742.) However, it does not bar recovery of attorney's fees for noncontract claims as long as the attorney's fees clause is broad enough to encompass such noncontract claims. "'[T]he parties to a contract are free to agree that one or more of them shall recover their attorney fees if they prevail on a tort or other noncontract claim,'" and in such a case "'the right to recover those fees depends solely on the contractual language.'" (*Monster, LLC v. Sup. Ct.* (2017) 12 Cal.App.5th 1214, 1226 [quoting *Brown Bark III, L.P. v. Haver* (2013) 219 Cal.App.4th 809, 820].) With respect to tort claims, the question of whether to award attorney fees turns on: (1) the language of the contractual fee provision; (2) whether the party seeking fees has "prevailed" within the meaning of the provision; and (3) whether the claim is within the scope of the provision. (*Gil*, *supra*, 121 Cal.App.4th at 742-43.) Causes of action based on allegedly wrongful conduct that occurs during a foreclosure can be "on a contract" even though the causes of action asserted are tort claims, if the claims are based on obligations under the promissory note and/or deed of trust. *Yoon v. CAM IX Trust* (2021) 60 Cal.App.5th 388, 393. [court held that the "plaintiff's tort claims 'directly relate to enforcement of the note through foreclosure'" and where therefore "on a contract"].)

However, when a provision in a deed of trust states that a lender may recover attorney's fees incurred in enforcement, and those fees shall be added to the secured debt, such provision is not an attorney's fees under Civ. Code § 1717. (See, *Hart v. Clear Recon Corp.* (2018) 27 Cal.App.5th 322, 325; *Chacker v. JPMorgan Chase Bank, N.A.* (2018) 27 Cal.App.5th 351, 356-357.) The court in *Hart*, *supra*, stated:

> Pursuant to the language quoted above, section 1717 applies only where a "contract specifically provides that attorney's fees ... shall be awarded" to one party or the prevailing party. We must consider whether paragraph 9 of the deed of trust specifically so provides. By its plain language, it does not. The paragraph allows the lender to take numerous actions, including incurring attorney's fees, to protect its interest. It then provides, in the language we emphasized above, that [a]ny amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument." *This is not a provision that attorney's fees "shall be awarded"; it is, instead, a provision that attorney's fees, like any other expenses the lender may incur to protect its interest, will be added to the secured debt.*

(*Hart*, *supra*, 27 Cal.App.5th at 327 [emphasis added].) The court in *Chacker*, *supra*, stated:

> Where not authorized by statute, entitlement to attorney fees derives from the contractual terms chosen. Just as parties may limit or expand the circumstances under which attorney fees are awardable …, they may also limit or expand how those attorney fees may be obtained. Here, the parties to the deed of trust agreed attorney fees incurred as described under section 9 would become additional debt secured by the deed of trust. They also agreed the lender could "charge" the borrower fees for services

> performed in connection with the borrower's default, including attorney fees, under section 14. As we have explained, the trust deed is properly read (only) to permit attorney fees to be added to the borrower's promissory note obligation, and the terms of the trust deed itself are all the “authority” that is necessary under the circumstances.

(*Chacker*, *supra*, 27 Cal.App.5th at 357.)

Like the provisions in *Hart* and *Chacker*, the purported attorney's fees provision in the Deed of Trust at issue here states: “If Borrower fails to perform the covenants and agreements contained in this Deed of Trust, or if any action or proceeding is commenced which materially affects the Lender’s interest in the Property, then Lender, at Lender’s option, upon notice to the Borrower, may make such appearances, disburse such sums, including reasonable attorneys’ fees, and take such action as is necessary to protect Lender’s interest… *Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the Note rate, shall become additional indebtedness of Borrower secured by this Deed of Trust*…” (RFJN, Ex. A.)

As stated in *Hart* and *Chacker*, this is not a provision pursuant to which attorney's fees are awarded as required for the recovery of attorney's fees pursuant to Civ. Code § 1717. (*Hart*, *supra*, 27 Cal.App.5th at 327; *Chacker*, *supra*, 27 Cal.App.5th at 357.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405296	MCCONNELL VS THE BANK OF NEW YORK MELLON.	MOTION TO COMPEL NONPARTY NON-DEFENDANT'S RESPONSE TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling: Hearing continued to 8/4/26.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600117	SMITH VS RIVERSIDE UNIFIED SCHOOL DISTRICT	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: Defendant’s UNOPPOSED Special Motion to Strike (Anti-SLAPP) pursuant to CCP §425.16 is granted. Plaintiff’s Complaint is stricken in its entirety.

Defendant is awarded Attorney’s Fees AGAINST Plaintiff in the amount of $2,800 (8 hours at $350/hour).

REQUESTS FOR JUDICIAL NOTICE

Court Grants Defendant’s requests for judicial notice of three documents.